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at New York, between the United States and Creek Indians, on the 7th day of August, in the year 1790, which fixes the boundary line from the top of the Currohee mountain, "to the head or source of the main south branch of the Oconee river, called the Appalachie, thence down the middle of the said south branch to its confluence with the Oakmulgee." In pursuance of this treaty, the line from the Currohee mountain to the head or source of the main south branch of the river Oconee, was run by Benjamin Hawkins.

Some ambiguity undoubtedly exists in the treaty made with the Creeks at Augusta, which, in a contest between Georgia and the Creeks, might claim a construction favorable to the pretension of the less powerful and less intelligent or skilful party to the compact. But in a controversy in which both parties claim title under the state of Georgia, it would seem reasonable, to give the article that construction which Georgia herself has put upon it, provided it be reconcilable to the words. The line is to run "to the source of the most southern branch of the Oconee river, including all the water of the same." The source of the most southern branch is the source of the main stream of that branch. It is a point to which the line is to be run from the top of the Currohee mountain. This line, if the treaty gave no directions respecting its course, would be a straight line. But the treaty directs it to be so run as "to include all the waters of the same;" that is, "all the waters" of the most southern branch. The line must, therefore, be drawn from the one given point to the other, in such direction as to include all the waters of the most southern branch of the Oconee. It must, therefore, instead of being straight, pass round the sources of all those streams which empty into the south fork on its northern side, and are between the points of commencement and of termination. But it is obvious, that no line from the top of the Currohee mountain to the *source of the most southern branch of the Oconee river, can include the waters which empty into [*230 it on the southern side.

To obviate this difficulty, the defendants insist, that the line shall pass round the main branch of the south fork of the Oconee to the source of the lowest stream which empties into it on the south side, and proceed down that stream. This line would include all the waters of the south fork, but is attended with other difficulties of no inconsiderable magnitude. The words of the treaty seem to require, that the line should stop at the source of the main stream, not at the source of an inconsiderable rivulet. From this source, the line is to proceed down the river. It is reasonable to suppose, that it proceeds down the river, from the source of the river, not from the source of a small branch. It is to include all the waters, that is, all the tributary streams of that at whose source it stops. But this construction requires it to stop at the source of a stream, which is itself tributary to the very river which is spoken of as one of its waters. If this construction be admitted, and the source of the lowest stream on the south side be substituted for the source of the main stream, still the line must run down that lowest water-course to the south fork, and down the south fork to the old line. The case does not inform us, that even this line would include the whole tract granted to Basil Jones. That tract is stated to lie on the waters of the south fork, but not on the Georgia side of the most extreme of those waters. So much of it as may be situated on the Indian side of that water-course, would be within the Indian hunting-grounds.

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The treaty made with the Cherokees, at Augusta, on the 1st day of June 1783, is apparently intended to establish the same line which was afterwards adopted in the treaty with the Creeks. The only variance in the language is, that in the treaty with the Cherokees, the line from the source of the southern branch of the Oconee river, is to run "down the middle of the said branch;" in the treaty with the Creeks, it is to run "down the river." It is not probable, that different lines could have been intended.

If the state of Georgia has construed this treaty by any subsequent *231] acts manifesting her understanding of it, we should not hesitate to adopt that construction in this case. But the bill of exceptions contains no fact, showing that Georgia has adopted a construction of her treaties with the Indians, which would establish the boundary claimed by the plaintiff. On the contrary, in February 1787, an act was passed "for the appointment of commissioners to run the line designating the Indian hunting-grounds.." This act directs the commissioners to proceed, in conjunction with those to be appointed by the Creek nation, to trace and mark "the temporary boundary line, as heretofore established; that is to say, from the Currohee mountain, in the direction of the present temporary line from Zugalo river, till the same shall strike the head or source of the main direct stream of the south branch of Oconee river, called also Appalachie, by which is to be understood the main fork of Oconee river, next above Little river." This act seems to reject all claim, on the part of Georgia, to lands lying south of the main stream of the south branch of Oconee, and to adopt the construction of the treaties at Augusta, which appears to have been adopted by the commissioners of the United States, at the treaty at Hopewell, in 1785.

The prayer we are considering, also requested the court to instruct the jury that the tract of land granted to Basil Jones was within the limits of Franklin county as by law defined. In February 1784, the legislature passed an act for laying off two more counties to the westward. One of these was the county of Franklin. The first section declares, "that the present temporary line, circumscribing the Indian hunting-ground, shall be marked by a line drawn from that part of the north branch of Savannah river, known by the name of the Owee, which shall be intersected by a line north-east from the Oconee mountains; thence in the same direction to Zugalo river; from thence, in a direct line, to the top of Currohee mountain; thence to the head or source of the most southern stream of the Oconee river, including all the waters of the *same; thence down the *232] said river to the old line, thence along the old line." The only difference between this legislative description of the line, circumscribing the Indian hunting-ground, and that in the treaty, is in the substitution of the word "stream," for the word "branch." In the treaty, "the branch," and in the law, "the stream," appeared to be considered as "the river." The line is to run from its source "down the said river." This language would seem to indicate that a considerable, or main branch, or stream—one which had acquired the name of river—not a small rivulet, was in the mind of the legislature. The line which runs to it from the top of the Currohee mountain is subject to all the uncertainty which attends the same line, as described in the treaty of Augusta.

The second section of the act proceeds to define the exterior lines of the

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county of Franklin. They run from the Savannah river to the south branch of the Oconee river; thence, up the said river, to the head or source of the most southern stream thereof; thence along the temporary line, separating the Indian hunting-ground, to the northern branch of the Savannah, &c. The southern boundary of Franklin county, from the place where the line from the Savannah strikes the most southern branch of the Oconee river, is, up that river to the head or source of the most southern stream thereof. You find the head or source of this most southern stream by proceeding up the river. It may well be doubted, whether this description will admit of leaving the river for any of its small rivulets. The words, the most southern stream of the south branch of the Oconee, whose source is to be found by proceeding up the river, may be satisfied, either by pursuing the most southern stream which has acquired the name of river, or the most southern stream which empties into the river. It can scarcely be imagined, that Georgia has not settled practically the limits of Franklin county; and any such settlement ought to have been conclusive with the circuit court. But no such settlement is stated in the record, and the court is required *to say, in what manner its boundary lines are to be drawn, in pursu- [*233
ance of the act of assembly by which it was constituted. The court is relieved from the difficulty by the same circumstances which made it unnecessary to determine the line which circumscribed the Indian hunting-grounds. The statement of fact on which the opinion of the court is asked, does not affirm that the land lies on the northern, or Georgia side of the most southern stream, but that it lies on the waters of the south branch of the Oconee river. For this reason, this instruction ought not to have been given as asked.

The third exception states, that the said counsel for the plaintiff also moved the court to instruct the jury, that the said grant to Basil Jones, under which plaintiff derived title, was a legal and valid grant for all the lands exhibited on the plat as lying north and east of the south fork of the Oconee river, now called Appalachie, including all the waters of the same; which instruction the court, being divided in opinion, refused to give. The court understands the words "including all the waters of the same," to mean waters north and east of the south fork of the Oconee river. This application, like the second, is supposed to be made on the assumption, that the facts stated in the first are true. If they are, then, all the land contained in the patent, lying north and east of the south branch of Oconee, is on the Georgia side of the line circumscribing the Indian hunting-ground, and within the county of Franklin, as described by law. The application supposed to be made to the court, is to instruct the jury, that the grant is good for so much land as lies within the county of Franklin, although part of the tract may be without that county and within the Indian boundary. The counsel for the defendants insist, that, under the laws of Georgia, the whole patent is void, if any part of the land it purports to grant be within the Indian boundary. The counsel for the plaintiff contended, that the laws, so far as they have declared patents to be void, are entirely retrospective; and that prospectively, they only inflict penalties on persons who shall make surveys in contravention of the statute.

*In January 1780, an act was passed "for the more speedy and effectual settling of this state." The 19th section enacts, "that no [*234